MAGAGA MASEDZA
and
REUBEN MASEDZA
versus
GOSPEL OF GOD INTERNATIONAL
and
COMMISSIONER GENERAL OF THE ZIMBABWE REPUBLIC POLICE N.O

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE 12 and 23 February 2026

Opposed Application

L. Uriri, for the applicants
S.M. Hashiti with him E. Mubaiwa and B. Pabwe, for the first respondent

MAMBARA J:

[1] This was an application for an interdict. The matter was set down for hearing, and the respondents prepared for that hearing and briefed counsel.

[2] A day before the hearing, the applicants filed a notice of withdrawal and sought that each party bears its own costs. The respondents objected. The gist of the objection was that the applicants waited until the eleventh hour to withdraw without leave, despite the fact that the supervening development (a judgment of the Supreme Court directly affecting the relief sought) had already been handed down some days earlier. The respondents urged that the proper course was dismissal, or, if withdrawal be permitted, that costs follow.

[3] At the commencement of proceedings, it was common cause that the relief sought had been overtaken by events. In particular, the Supreme Court had since pronounced itself in a manner that rendered the controversy, as framed in this application, academic. Our law recognises that where supervening events terminate the live controversy, the matter becomes moot. The court's jurisdiction may, in such circumstances, cease to require a determination on the merits; though the court retains a discretion to make an appropriate order, including on costs, in the interests of justice.

[4]The respondents placed reliance on *Khupe & Ors* v *Parliament of Zimbabwe* CCZ 20/19, contending that withdrawal should not be permitted post set-down and that dismissal is the proper remedy. That authority is distinguishable on the facts and posture. In casu, the controversy did not fall away by the applicants' whim; it fell away because the superior court's pronouncement resolved the substratum of the time-specific interdict sought.

[5] Where a matter has been overtaken by events, and the applicant seeks leave to withdraw at the hearing, the court is entitled, in the proper exercise of its discretion, to grant such leave, without traversing now-academic merits. The respondents' legitimate concern lies, not in vindication on the merits, but in not being left out of pocket for costs unnecessarily incurred in preparing for a hearing that could not, in the end, yield practical relief.

[6] Costs remain in the discretion of the court. The general principle is that a party who, by its conduct, causes another to incur wasted costs should bear such costs, unless good reason exists to depart therefrom. Here, the respondents had already briefed counsel who prepared and appeared, only to be met with a withdrawal at the door of court. That prejudice is real and measurable.

[7] In the circumstances, fairness is achieved by permitting withdrawal because the cause for the interdict had dissipated but compensating the respondents to the limited extent of counsel's fees occasioned by set-down and appearance. This levels the playing field, without converting a moot dispute into punitive litigation.

[8] The following order will therefore issue.

IT IS ORDERED THAT:

[9] The applicants are granted leave to withdraw the application.

[10] The application is and is hereby withdrawn.

[11] The applicants shall pay the respondents' advocate's fees for preparation and appearance on the date of set down, such fees to be taxed by the Registrar if not agreed.

MAMBARA J……..

Mushangwe & Company, applicants' legal practitioners

Venturas & Samukange, first respondent's legal practitioners.